

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

CATHERINE ANNE COOKE CAMERON,

Petitioner

VS.

DELROY HUBORN LUGARD CAMERON,

Respondent

) Case Number: FDI-24-800519

) Hearing Date: May 5, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER CHANGE OF ATTORNEY FEES AND COSTS, MODIFICATION AND
TERMINATION OF PRIOR FEE ORDER AND REQUEST FOR SANCTION 271 SANCTIONS

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Catherine Cameron (Wife) and Respondent Delroy Cameron (Husband) married on 3/17/2017. The parties agree they separated in 2024 (but disagree regarding the exact date), for a marriage of at least 7 years. The parties have no minor children in common. However, Husband is the father of a child named Max who was born on 5/17/2025 via surrogate. Wife states she was not involved with the surrogacy arrangement and she is not a legal parent of Max. Wife is represented by attorney Charles Young. Husband is self-represented.
- 2) On 12/11/2024, a Stipulation Regarding Vicente Street Apartment and Order Thereon was entered giving Wife exclusive occupancy of an apartment located on Vicente Street and requiring Husband to pay the rent and related bills for the apartment.
- 3) On for hearing is Husband's Request for Order filed 3/12/2026. Husband states he agreed to pay Wife's attorney's fees on a needs-basis, but the case has been pending for 16 months with little progress toward a final judgment. Husband states he pays \$2,500 per month for childcare for his

son which hinders his ability to pay Wife's attorney's fees. Husband also states Wife served her Preliminary Declaration of Disclosure 125 days after the Petition was filed, but has yet to file a Declaration Regarding Service of Preliminary Declaration of Disclosure (FL-141). Husband also states Wife's former attorney Nancy Rubin and Wife's current attorney have caused delays, acted in bad faith, and taken unreasonable settlement positions including requesting that Husband be 100% responsible for community debts. Husband also states Wife has refused his requests to go to mediation or to set a Mandatory Settlement Conference. Husband filed numerous declarations on 3/20/2026, 3/24/2026, and 4/7/2026 providing additional exhibits and information to the Court. Husband asks the Court to:

- a. Terminate "the order for [Husband] to pay [Wife]'s ongoing attorney fees" effective immediately;
 - b. Deem all fees paid or due to be paid to Wife's prior attorney Nancy Rubin (\$15,000) an "advance" against Petitioner's share of community property;
 - c. Impose sanctions under Family Code section 271 in the amount of \$31,550 to be deducted from Petitioner's final settlement; and
 - d. Cap attorney's fees awardable to Wife at \$20,000.
- 4) On 3/20/2026, Husband filed an Income and Expense Declaration. See summary of Husband's Amended Income and Expense Declaration filed 4/29/2026 below.
- 5) On 4/22/2026, Wife filed a Responsive Declaration. Wife states she has serious health issues and is permanently disabled. Wife notes Husband's end of year paycheck for 2024 showed he earned a total of \$307,620 in gross wages plus an additional \$150,000 in RSU income for total income of \$456,440. Wife notes her prior attorney was facing health issues and her current attorney was working through a trial, which may have caused some delays, and denies that she has been litigating in bad faith. Wife asks the Court to:
- a. Deny Husband's request to modify or terminate the prior fee order;
 - b. Deny Husband's request for Family Code section 271 attorney's fees and sanctions in the amount of \$31,550;
 - c. Award Wife \$50,000 in Family Code Section 2030 fees, paid in a lump sum or monthly at \$10,000 per month; and

- 1 d. Order Husband to pay guideline temporary spousal support with a Smith/Ostler table for
2 additional income, retroactive to the filing of Husband's Request for Order; and
3 e. Make any other orders the Court deems just and reasonable.
- 4 6) The Court notes there is currently no Court order requiring Husband to pay Wife's attorney's
5 fees. Wife also states in her Responsive Declaration that she has "no idea what Delroy refers to
6 when he asks the Court to terminate a Family Code section 2030 award."
- 7 7) On 4/22/2026, Wife filed an Income and Expense Declaration. Wife states she was last employed
8 as a Special Day Class Teacher but her employment ended on June 2010. Wife states she receives
9 Social Security income of \$1,036 per month. Wife states she has \$18,547 in cash savings in a
10 joint account held with Husband. Wife also has \$2,049 in separate property cash savings. Wife
11 states she has \$0 in easily saleable investments. She states she has \$4,500 in personal property.
12 Wife states that her actual expenses total \$9,287 per month, and that \$4,747 of this is paid using
13 contributions by Husband. Wife states she owes \$14,332 in credit card expenses and owes
14 \$32,000 to her mother for legal fees. Wife states she has paid her attorney \$16,095 to date (and
15 paid \$15,435 to her prior counsel) using a loan from her mother. Wife also states that she owes
16 her attorney "\$7,635+."
- 17 8) On 4/22/2026, Wife filed a Memorandum of Points and Authorities citing Family Code sections
18 271 and 2030.
- 19 9) On 4/22/2026, Wife's attorney Charles Young filed a declaration. Mr. Young states Wife has
20 incurred and paid fees in the amount of \$17,870 with Mr. Young's firm and Wife's work in
21 progress for April is \$8,520 as of 4/20/2026. Mr. Young anticipates Wife will incur an additional
22 \$5,000 through the hearing in this matter. Mr. Young also anticipates Wife will incur an
23 additional \$75,000 to finalize her divorce due to the combative nature of Husband, to hire a
24 forensic accountant to conduct a Marital Standard of Living analysis, to prepare a Hugh / Nelson
25 analysis, and to prepare QDROs.
- 26 10) On 4/28/2026, Wife filed a Statement of Support Calculations contending Husband should be
27 paying to Wife \$5,803 per month in temporary guideline spousal support.
- 28 11) On 4/28/2026, Husband filed a Reply Declaration. Husband states the community has \$91,000 in
29 liquid assets but the community also owes \$11,000 in debt. Husband states that a \$50,000 fee

award will render him insolvent for at least 60 days. Husband also states his net take home is \$10,000 per month and so he cannot pay a \$50,000 fee award in installments of \$10,000. Husband states his “next RSU inflow is not for six months.” Husband states he has “already paid Petitioner her share of post-separation RSUs, on par with a 15% Smith/Ostler percentage – except the April 2026 RSUs, which is pending disbursement. Respondent expects the total outstanding amount due to be around \$15,000 due mostly to depletion of the original \$25,00 deposited in the joint account in October 2025.” Husband states he is currently paying \$4,750 per month for Wife’s living expenses which represents 45% of his monthly net disposable income. Husband states he is voluntarily reducing his sanction request to \$15,500 “which represents the amount in debt servicing I will have unliterally contributed while Petitioner refuses to take accountability for her half of the \$64,000 in community debt.” Husband asks the Court for an early distribution of a portion of the retirement account which he wants to use to extinguish \$64,000 in joint credit card debt and a Mandatory Settlement Conference for end of June.

12) On 4/29/2026, Husband filed an Amended Income and Expense Declaration. Husband states he is 46 years old and he has worked as a software engineer for Apple since 2016 (since before the parties married). Husband states he earns on average \$18,000 per month in salary and an additional \$1,500 per month in bonuses. Husband also states he earns on average \$15,309 from RSUs. Husband states he has \$15,874 in cash savings, \$67,536 in easily saleable investments, and \$106,428 in real property. Husband states his monthly expenses total \$15,743, including the rent paid for Wife’s apartment. Husband states he owes \$74,938 in credit card debt and an additional \$46,870 to the IRS. Husband states he has paid \$0 in attorney’s fees to date.

13) On 4/30/2026, Wife filed an Amended Statement of Support Calculations contending Husband should be paying to Wife \$5,413 per month in temporary guideline spousal support.

B. Findings and Order

1) Spousal Support

- a. The Court notes that Wife’s request for temporary spousal support orders exceed the scope of Husband’s Request for Order filed 3/12/2026. However, the Court notes that Husband has not objected to Wife’s request for temporary spousal support on this basis and he substantively responded to Wife’s request for temporary spousal support orders in

1 his Reply Declaration. On this basis and in the interest of judicial economy, the Court
2 will address Wife's request for spousal support orders below.

- 3 b. According to the XSpouse calculation attached hereto and incorporated herein, the Court
4 finds base guideline spousal support payable by Husband to Wife would be \$4,318 per
5 month.
- 6 c. In her 4/22/2026 Income and Expense Declaration, Wife states Husband is currently
7 paying the following monthly expenses on her behalf: rent (\$3,480), utilities (\$597.33),
8 cellphone and Internet service (\$220.64), laundry and cleaning (\$200), auto expense
9 (\$193.33), and Amazon (\$56.37). This amounts to \$4,747.67 per month, which is the
10 same amount that Husband reports he has been paying on Wife's behalf per month.
- 11 d. The Court notes that Husband appears to be paying for expenses on Wife's behalf that
12 exceed the requirements of the Stipulation and Order filed 12/11/2024. If Husband just
13 paid the expenses set forth in the Stipulation and Order filed 12/11/2024, it would
14 essentially equal the monthly temporary guideline spousal support figure. On this basis,
15 the Court does not find good cause to modify the current Stipulation and Order filed
16 12/11/2024.
- 17 e. However, the Court does find good cause to make a Smith / Ostler spousal support award
18 given that Husband reports earning bonuses and RSU income and there is currently no
19 Smith / Ostler support order in effect. Effective 5/5/2026, Husband shall pay to Wife
20 Smith / Ostler spousal support in accordance with the Annual Bonus Wages report
21 attached hereto within 10 days of receiving a bonus, separate property RSU income, or
22 other income above his base salary of \$18,000 per month. Husband shall provide to Wife
23 documentation (e.g., paystub) showing the additional income received simultaneously
24 with making payment.
- 25 f. The Court's jurisdiction to later make a determination regarding what Husband owes to
26 Wife for income generated from community property RSU is reserved.

27 2) Attorney's Fees and Costs

- 28 e. Regarding Wife's request for attorney's fees and costs, the Court notes that if Husband
29 were paying for just Wife's rent and utilities, he would have 60% of the parties'

combined net spendable base income and Wife would have 40% of the parties' combined net spendable base income. The Court also notes that although the parties report having significant assets, they are also heavily in debt. The Court further notes that Husband is paying \$2,500 per month towards his son's childcare expenses. Husband states he has contributed \$15,000 towards Wife's attorney's fees to date. The Court does not find that the issues in this case are very complex. The Court hereby awards to Wife an additional \$25,000 in attorney's fees and costs, which the Court finds is a just, reasonable, and necessary amount. This amount, in addition to the \$15,000 Husband has already paid for Wife's attorney's fees and costs, is being awarded to cover fees and costs incurred by Wife through entry of final Judgment if the parties are able to reach a global settlement in their case. If a long-cause hearing is set in this matter, this Court's jurisdiction to augment this fee award is reserved. Husband shall pay this amount to Wife from his separate property investment and cash holdings. Commencing 5/15/2026, Husband shall pay this amount to Wife in four installments of \$6,750, to be paid by the 15th of each month.

- f. Husband's request that the Court cap total fees awardable to Wife in this case at \$20,000 is denied.
- g. Husband's request that the Court deem all fees paid to Wife's prior attorney as an "advance" against Wife's share of the community property is denied.
- h. Husband's request for attorney's fees sanctions is denied.

3) Other Orders

- e. Wife shall file a Declaration Regarding Service of Preliminary Declaration of Disclosure (FL-141) no later than 5/15/2026.
- f. The Court's jurisdiction to reimburse to Husband for any portion of payments and contributions he has paid to service community debts since the date of separation is reserved for trial / final Judgment.
- g. Husband's request for an early distribution of the community retirement funds to extinguish joint credit card debt is denied as the Court is unable to divide community property prior to trial absent exigent circumstances.

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- h. Regarding Husband's request that the Court set a Mandatory Settlement conference for end of June, Husband is welcome to file an At Issue Memorandum which will lead to the setting of a Mandatory Settlement Conference.
- 4) The Court will prepare the Findings and Order After Hearing.

Fixed Shares	Husband	Wife	Monthly figures	Cash Flow	Guideline	Proposed
#of children	0	0	2026			
% time with NCP	0.00 %	0.00 %		Comb. net spendable	13650	13650
Filing status	HH/MLA	<-MFS	GUIDELINE	Percent change	0%	0%
# exemptions	2	1	Nets(adjusted)	Husband		
Wages+salary	18000	0	Husband	12382		
Self-employed income	0	264	Wife	1268		
Other taxable income	0	1036	Total	13650		
TANF+CS received	0	0	Support			
Other nontaxable income	0	0	Addons	0		
New spouse income	0	0	Guideln CS	0		
401(k) employee contrib	1200	0	S.Clara SS	4318		
Adjustments to income	0	0	Total	4318		
SS paid prev marriage	0	0	-			
CS paid prev marriage	0	0				
Health insurance	634	0		Wife		
Other medical expense	0	0		Payment cost/benefit	4318	4318
Property tax expense	0	0		Net spendable income	5587	5587
Ded interest expense	0	0	Proposed	Change from guideline	0	0
Charitable contributions	0	0	Tactic 9	% of combined spendable	41%	41%
Misc tax deductions	0	0	CS	0		
Qual bus income ded	0	0	SS	4318		
Required union dues	0	0	Total	4318		
Mandatory retirement	0	0				
Hardship deduction	0	0	* Saving	0		
Other GDL deductions	0	0	Releases	0		
Child care expenses	0	0				

Husband pays Guideline SS, Proposed SS

Annual Bonus Income Husband

- Cost is an increase in support paid or a decrease in support received by this spouse
- Bonus income may reverse direction of CS and/or SS
- R = recipient of support

Annual bonus paid to Wife: 0
Prior relationship(s): OFF

Additional Cost to Husband

Husband's Bonus	Child Support		Spousal Support		Total CS	Total SS (adjusted)
	% of bonus	\$	% of bonus	\$		
0	0.00	0	0.00	0	0	0
5,000	0.00	0	25.22	1,261	0	53,083
10,000	0.00	0	25.22	2,522	0	54,344
15,000	0.00	0	25.22	3,783	0	55,605
20,000	0.00	0	25.22	5,044	0	56,866
25,000	0.00	0	25.22	6,305	0	58,127
30,000	0.00	0	25.22	7,566	0	59,388
35,000	0.00	0	24.94	8,728	0	60,550
40,000	0.00	0	24.57	9,829	0	61,651
45,000	0.00	0	24.29	10,930	0	62,752
50,000	0.00	0	24.06	12,031	0	63,853
55,000	0.00	0	23.88	13,132	0	64,954
60,000	0.00	0	23.72	14,233	0	66,055
65,000	0.00	0	23.59	15,334	0	67,156
70,000	0.00	0	23.48	16,435	0	68,257
75,000	0.00	0	23.38	17,536	0	69,358
80,000	0.00	0	23.30	18,637	0	70,459
85,000	0.00	0	23.22	19,738	0	71,560
90,000	0.00	0	23.11	20,795	0	72,617
95,000	0.00	0	22.99	21,836	0	73,658
100,000	0.00	0	22.90	22,902	0	74,724
105,000	0.00	0	22.87	24,018	0	75,839
110,000	0.00	0	22.85	25,133	0	76,954
115,000	0.00	0	22.82	26,248	0	78,070
120,000	0.00	0	22.80	27,363	0	79,185
125,000	0.00	0	22.78	28,478	0	80,300
130,000	0.00	0	22.76	29,594	0	81,415
135,000	0.00	0	22.75	30,709	0	82,530
140,000	0.00	0	22.73	31,824	0	83,646
145,000	0.00	0	22.72	32,939	0	84,761
150,000	0.00	0	22.70	34,054	0	85,876
155,000	0.00	0	22.69	35,170	0	86,991
160,000	0.00	0	22.68	36,285	0	88,106
165,000	0.00	0	22.67	37,400	0	89,222
170,000	0.00	0	22.66	38,515	0	90,337
175,000	0.00	0	22.65	39,630	0	91,452
180,000	0.00	0	22.64	40,746	0	92,567
185,000	0.00	0	22.63	41,861	0	93,682
190,000	0.00	0	22.62	42,976	0	94,798
195,000	0.00	0	22.61	44,091	0	95,913
200,000	0.00	0	22.60	45,203	0	97,025
205,000	0.00	0	22.59	46,315	0	98,137
210,000	0.00	0	22.58	47,427	0	99,249
215,000	0.00	0	22.58	48,540	0	100,361
220,000	0.00	0	22.57	49,652	0	101,473

Annual Bonus Income Husband

- Cost is an increase in support paid or a decrease in support received by this spouse
- Bonus income may reverse direction of CS and/or SS
- R = recipient of support

Annual bonus paid to Wife: 0
Prior relationship(s): OFF

Additional Cost to Husband						
	Child Support		Spousal Support		Total CS	Total SS
Husband's Bonus	% of bonus	\$	% of bonus	\$		(adjusted)
225,000	0.00	0	22.56	50,764	0	102,585
230,000	0.00	0	22.55	51,876	0	103,697
235,000	0.00	0	22.55	52,988	0	104,810
240,000	0.00	0	22.54	54,100	0	105,922
245,000	0.00	0	22.54	55,212	0	107,034
250,000	0.00	0	22.53	56,324	0	108,146
255,000	0.00	0	22.50	57,366	0	109,187
260,000	0.00	0	22.46	58,402	0	110,224
265,000	0.00	0	22.43	59,442	0	111,264
270,000	0.00	0	22.40	60,483	0	112,305
275,000	0.00	0	22.37	61,524	0	113,346
280,000	0.00	0	22.34	62,565	0	114,387
285,000	0.00	0	22.32	63,606	0	115,428
290,000	0.00	0	22.29	64,647	0	116,469
295,000	0.00	0	22.27	65,688	0	117,510
300,000	0.00	0	22.24	66,729	0	118,551
305,000	0.00	0	22.22	67,770	0	119,592
310,000	0.00	0	22.20	68,811	0	120,633
315,000	0.00	0	22.12	69,685	0	121,506
320,000	0.00	0	22.04	70,516	0	122,337
325,000	0.00	0	21.95	71,347	0	123,168
330,000	0.00	0	21.87	72,178	0	123,999
335,000	0.00	0	21.79	73,009	0	124,830
340,000	0.00	0	21.72	73,836	0	125,658
345,000	0.00	0	21.64	74,647	0	126,469
350,000	0.00	0	21.56	75,458	0	127,280
355,000	0.00	0	21.48	76,269	0	128,091
360,000	0.00	0	21.41	77,080	0	128,902
365,000	0.00	0	21.34	77,891	0	129,713
370,000	0.00	0	21.33	78,905	0	130,727
375,000	0.00	0	21.31	79,926	0	131,748
380,000	0.00	0	21.30	80,947	0	132,769
385,000	0.00	0	21.29	81,968	0	133,789
390,000	0.00	0	21.28	82,989	0	134,810
395,000	0.00	0	21.27	84,010	0	135,831
400,000	0.00	0	21.26	85,031	0	136,852
405,000	0.00	0	21.25	86,052	0	137,874
410,000	0.00	0	21.24	87,073	0	138,895
415,000	0.00	0	21.23	88,094	0	139,916
420,000	0.00	0	21.22	89,115	0	140,937
425,000	0.00	0	21.21	90,136	0	141,958
430,000	0.00	0	21.20	91,157	0	142,979
435,000	0.00	0	21.19	92,178	0	144,000
440,000	0.00	0	21.18	93,199	0	145,021
445,000	0.00	0	21.17	94,214	0	146,035

Annual Bonus Income
Husband

- Cost is an increase in support paid or a decrease in support received by this spouse
- Bonus income may reverse direction of CS and/or SS
- R = recipient of support

Annual bonus paid to Wife: 0
Prior relationship(s): OFF

Additional Cost to Husband						Total CS	Total SS (adjusted)
Child Support			Spousal Support				
Husband's Bonus	% of bonus	\$	% of bonus	\$			
450,000	0.00	0	21.16	95,215	0		147,036
455,000	0.00	0	21.15	96,216	0		148,037
460,000	0.00	0	21.13	97,217	0		149,038
465,000	0.00	0	21.12	98,218	0		150,039
470,000	0.00	0	21.11	99,219	0		151,040
475,000	0.00	0	21.09	100,186	0		152,007
480,000	0.00	0	21.07	101,147	0		152,968
485,000	0.00	0	21.05	102,108	0		153,929
490,000	0.00	0	21.03	103,069	0		154,890
495,000	0.00	0	21.02	104,030	0		155,851
500,000	0.00	0	21.00	104,991	0		156,812